

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CESAR CASTRO-VASQUEZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER IAN
GRIFFITH SHIELD# 24075, Individually and in his Official
Capacity, and POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacities (the name John
Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
January 5, 2017

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer IAN GRIFFITH, Shield# 24075
Brooklyn Court Section
210 Joralemon Street
Brooklyn NY 11201

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COUNTY OF KINGS

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THE CITY OF NEW YORK, POLICE OFFICER IAN GRIFFITH SHIELD# 24075, Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

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VERIFIED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

PLAINTIFF Cesar Castro-vasquez, by his attorneys, LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. PLAINTIFF Cesar Castro-Vasquez, is an Hispanic male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants POLICE OFFICER IAN GRIFFITH Shield No. 24075 and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. PLAINTIFF does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about June 25, 2013 at or around 2:10 PM, PLAINTIFF was lawfully within the vicinity of Boerum Street and Manhattan Avenue Brooklyn, Kings, New York.

9. Several unidentified New York City Police Officers, including defendant GRIFFITH and the DOE defendants, drove past PLAINTIFF in a police van.

10. Without any legal justification, the officers jumped out the van and began to harass PLAINTIFF, despite the fact that they had no reasonable suspicion or other lawful basis to do so.

11. PLAINTIFF asked the officers why were they mistreating him because he had not done anything illegal.

12. The defendants were angered by this and notwithstanding the fact that defendants had no probable cause to believe that PLAINTIFF had committed any crimes or offenses, defendants placed PLAINTIFF into handcuffs and under arrest.

13. The defendants used force to place PLAINTIFF under arrest; they grabbed and twisted his arm, and threw PLAINTIFF to the ground.

14. PLAINTIFF was subsequently transported to the police precinct.

15. At the precinct the officers, including defendant GRIFFITH, falsely informed employees of the Kings County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF commit various crimes/offenses.

16. Neither GRIFFITH nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

17. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

18. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/or continue the criminal prosecution of PLAINTIFF.

19. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendant's claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

20. From the precinct, PLAINTIFF was then transported to Kings Central Booking, and was subsequently arraigned.

21. PLAINTIFF was released after spending approximately twenty four (24) hours in custody.

22. PLAINTIFF appeared in court as required from June 25, 2013 to January 8, 2014, when PLAINTIFF's criminal case was subsequently dismissed.

23. Due to the defendants' false statements and fabrication of evidence, PLAINTIFF was denied access to a fair trial and was maliciously prosecuted.

24. During the time that he was prosecuted, PLAINTIFF suffered loss of liberty, incurred expenses, and lost wages.

25. PLAINTIFF suffered damage as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

STATE CLAIMS
FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

55. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

56. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

57. Defendants maliciously commenced criminal proceeding against PLAINTIFF, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

58. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

59. All charges were terminated in PLAINTIFF's favor.

60. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

61. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

FEDERAL CLAIMS
FIRST CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DEPRIVATION OF FEDERAL RIGHTS

62. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

63. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

64. All of the aforementioned acts deprived PLAINTIFF of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

65. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

68. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

69. Defendants created false evidence against PLAINTIFF.

70. Defendants forwarded false evidence and false information to prosecutors in the Kings County District Attorney's office.

71. Defendants misled the prosecutor by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

72. In creating false evidence against PLAINTIFF, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated PLAINTIFF's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

79. PLAINTIFF repeats and realleges each and every allegation as if fully set forth herein.

80. By their conduct, as described herein, defendants are liable to PLAINTIFF for having committed malicious prosecution under the laws of the State of New York.

81. Defendants maliciously commenced criminal proceeding against PLAINTIFF, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged PLAINTIFF with violations of the laws of the State of New York.

82. The commencement and continuation of the criminal proceedings against PLAINTIFF was malicious and without probable cause.

83. All charges were terminated in PLAINTIFF's favor.

84. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of PLAINTIFF. Defendant City of New York, as an employer of the

individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a direct and proximate result of the misconduct and abuse of authority stated above, PLAINTIFF sustained the damages alleged herein.

FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY

86. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

87. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

88. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

89. The foregoing customs, policies, usages, practices, procedures and rules of the

City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the PLAINTIFF.

90. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the PLAINTIFF as alleged herein.

91. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the PLAINTIFF as alleged herein.

92. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

93. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the PLAINTIFF's constitutional rights.

94. The acts complained of deprived the PLAINTIFF of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;

- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorney's fees, interest, costs and disbursements of this action.

DATED: New York, New York
January 5, 2017

_____/s/_____
Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for PLAINTIFF Cesar Castro-vasquez in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the PLAINTIFF is that the PLAINTIFF is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 January 5, 2017

_____/S/_____
Katherine E. Smith